

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Flannery Gallagher	Team: Team # 3	CCRB Case #: 201310359	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 11/02/2013 7:09 PM	Location of Incident: Alaska Street and Castleton Avenue	18 Mo. SOL 5/2/2015	Precinct: 120
Date/Time CV Reported Sat, 11/02/2013 7:24 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 11/02/2013 7:24 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Justin Damico	00173	948847	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM David Weinberg	06614	949789	120 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . POM Justin Damico	Force: PO Justin D'Amico pointed his gun at § 87(2)(b)	A . Exonerated
B . POM Justin Damico	Discourtesy: PO Justin D'Amico spoke rudely to § 87(2)(b)	B . Unsubstantiated
C . POM Justin Damico	Abuse: PO Justin D'Amico refused to provide his name and shield number to § 87(2)(b)	C . Substantiated

Case Summary

§ 87(2)(b) filed this complaint on November 2, 2013 via the CCRB's Call Processing System. On November 2, 2013, at approximately 7:09 p.m., § 87(2)(b) was pulled over in his vehicle by PO Justin D'Amico and PO David Weinberg of the 120th Precinct in the vicinity of Alaska Street and Castleton Avenue, where he was issued summonses for having an obstructed view and idling for more than three minutes. The following allegations resulted from officers' actions.

Allegation A – Force: PO Justin D'Amico pointed his gun at § 87(2)(b)

§ 87(2)(g)

Allegation B – Discourtesy: PO Justin D'Amico spoke rudely to § 87(2)(b)

§ 87(2)(g)

Allegation C– Abuse of Authority: PO Justin D'Amico refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(g)

Mediation was not offered because the allegation that PO D'Amico pointed his gun at § 87(2)(b) rendered it ineligible for mediation.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

§ 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on November 13, 2013. § 87(2)(b)'s initial complaint narrative on October 31, 2013 (encl. C-1-C-2), initial telephone statement on November 6, 2013 (encl. C-3), and in-person CCRB statement on November 13, 2013 (encl. D-1-D-4) § 87(2)(g)

§ 87(2)(b). His testimony is summarized below, with those exceptions noted.

On November 2, 2013, at approximately 7:09 p.m., § 87(2)(b) was driving eastbound on Castleton Avenue in Staten Island on his way home from work. When he was approaching Alaska Street, he double-parked in order to enter a store. § 87(2)(b) turned his car off, leaving his keys in the car and his hazard lights on. § 87(2)(b) spent less than a minute inside a store buying a drink, and when he exited he noticed a marked RMP also driving eastbound on Castleton Avenue. § 87(2)(b)

§ 87(2)(b) got back into his car, turned it on, and proceeded to drive roughly one-hundred feet and then made a right onto Alaska Street, where he was immediately pulled over to the right by the marked RMP. § 87(2)(b) turned his engine and lights off and rolled down his window.

An officer, identified by the investigation as PO D’Amico, approached § 87(2)(b) s driver-side window and asked for his license and registration. Another officer, identified by the investigation as PO Weinberg, was standing near the front passenger door, looking into § 87(2)(b) s car with a flashlight. § 87(2)(b) asked PO D’Amico if there was a reason he was being pulled over. PO D’Amico did not answer his question, but instead asked for § 87(2)(b) s license and registration again. § 87(2)(b) said, “Okay, I’ll give you my license and registration, but you never told me why I was being pulled over.” During § 87(2)(b) s initial telephone statement, he stated that he first reached for the glove compartment where he retrieved his registration and insurance information, and then he reached into the driver-side door pocket to retrieve his license. In his sworn statement to the CCRB, § 87(2)(b) only specified reaching for the glove compartment in front of the passenger seat to retrieve his information, at which time PO D’Amico drew his gun and aimed it sideways at § 87(2)(b).

PO D’Amico’s gun was nearly inside § 87(2)(b) s car and was roughly one foot to a foot and a half away from § 87(2)(b). § 87(2)(b) began to raise his voice and asked, “Why is this gun aimed at me?” PO D’Amico began screaming, “What are you reaching for? I’m fucking pulling you over.” § 87(2)(b) s phone was connected via speaker to his girlfriend, § 87(2)(b) and § 87(2)(b). § 87(2)(b) began instructing her to record what was happening in order to intimidate PO D’Amico; § 87(2)(b) was simultaneously tell PO D’Amico that he was going to file a complaint against him. § 87(2)(b) hung up with § 87(2)(b) during the argument because he did not want to upset her. § 87(2)(b) asked PO D’Amico for his name and shield number three times. PO D’Amico did not provide it verbally and also intentionally blocked his nameplate and shield from view with his shoulder. § 87(2)(b) described his demeanor as polite up until the gun was aimed at him, when he began using a louder voice. When PO D’Amico used profanity, § 87(2)(b) also responded by saying, “I don’t know why you’re fucking pulling me over like that. That’s unprofessional. I’m going to report you and get you in trouble. Why are you covering your badge?” After they finished arguing, § 87(2)(b) handed PO D’Amico his registration and insurance, and then his license. When PO D’Amico took § 87(2)(b) s materials, he put his weapon away. PO D’Amico and PO Weinberg returned to their car.

The officers were in their vehicle for twenty-five to thirty minutes while writing § 87(2)(b) s summonses. When the officers returned to § 87(2)(b) s car, § 87(2)(b) had a pen and paper ready to write down PO D’Amico’s name. § 87(2)(b) asked for PO D’Amico’s name once more, and PO D’Amico blocked his shield with his left hand. PO D’Amico said, “All the information you need is on the ticket.” § 87(2)(b) did not see PO D’Amico write the summons. At some point during the incident, § 87(2)(b) was able to see PO D’Amico’s name when he moved his body.

Witness: § 87(2)(b)

§ 87(2)(b) *The CCRB does not have any pedigree information for her.*

Telephone Statement

The undersigned investigator called § 87(2)(b) on November 19, 2013, and § 87(2)(b) provided a telephone statement (encl. D-5), affirming that she was on the phone with § 87(2)(b) on November 2, 2013 when he was being pulled over. § 87(2)(b) was on speaker phone, routed through the radio system; she could not understand much of what was being said by § 87(2)(b) and the officer during the incident. § 87(2)(b) told her he was being pulled over. § 87(2)(b)

§ 87(2)(b) asked, "Why? What did you do?" § 87(2)(b) said he had not done anything wrong. After § 87(2)(b) pulled over, § 87(2)(b) heard the person she believes to be a police officer, say, "License and registration," in a nasty tone. She heard § 87(2)(b) respond by asking why he was being pulled over. § 87(2)(b)'s tone was agitated and similar to that of the officer. § 87(2)(b) knows that § 87(2)(b) keeps his license and registration in the glove compartment. Then § 87(2)(b) heard screaming and § 87(2)(b) said, "He pulled his gun on me. Why are you pointing your gun at me? I was getting my license and registration." § 87(2)(b) heard the officer screaming but she could not hear anything he was saying. § 87(2)(b) heard § 87(2)(b) ask for the officer's shield number three times. § 87(2)(b) did not hear the officer provide his shield number verbally at any time. § 87(2)(b) remained on the phone with § 87(2)(b) when the officers returned to their vehicle to process his information. When they returned, she heard an officer say, "Sorry," and that his shield number was on the summons. § 87(2)(b) estimated the entire encounter took twenty to twenty-five minutes.

NYPD Statements:

Subject Officer: PO JUSTIN D'AMICO

- *PO D'Amico was § 87(2)(b) old at the time of the incident. He is a white man who is 5'6" tall, weighs 140 pounds, and has brown hair and black eyes.*
- *On the day of the incident, PO D'Amico was assigned to Sector Patrol in the 120th Precinct. He worked in uniform from 4:00 p.m. to 12:00 a.m. on November 3, 2013, with PO David Weinberg.*

Memo Book

PO D'Amico's memo book (encl. E-2-E-4) notes verbatim, "19:13 - car stop. Observed car with key in ignition for 3 minutes. Pulled motorist over. Very irate. When I asked for license, registration, insurance, he reached toward bottom of seat. Very irate at this time. § 87(2)(b) § 87(2)(b). Client ID number § 87(2)(b) License plate § 87(2)(b) § 87(2)(b). Date of birth: § 87(2)(b)." § 87(2)(b)

Summons § 87(2)(b)

Summons § 87(2)(b) (encl. F-15-F-16) shows that § 87(2)(b) was issued a summons on November 2, 2013 by PO Justin D'Amico for having his key in the ignition of his vehicle in violation of New York City Administrative Code § 10-111. The summons also notes, "Officer did observe defendant w/ key in ignition/engine on for three minutes. Defendant was very irate during investigation of car stop. Issued summons."

Summons § 87(2)(b)

Summons § 87(2)(b) (encl. F-17) shows that § 87(2)(b) was issued a summons on November 2, 2013 by PO Justin D'Amico for having an obstructed view in violation of VTL § 375-30.

CCRB Testimony

PO Justin D'Amico was interviewed at the CCRB on February 14, 2014. His statement is summarized below (encl. E-1-E-5).

On November 2, 2013, PO Justin D'Amico was driving a marked RMP with his partner, PO Weinberg, when he observed § 87(2)(b)'s car idling for three minutes in a drug and gun

prone area. In addition, PO D'Amico observed papers and unidentified "junk" that obstructed the rear windshield and a pair of boxing gloves that were hanging from the center rearview mirror in the front of § 87(2)(b)'s car, also resulting in an obstruction.

§ 87(2)(b) drove his car three-hundred to four-hundred feet from where PO D'Amico had observed it idling, and then the officers pulled him over. The officers exited the car and approached § 87(2)(b)'s car, with PO D'Amico approaching § 87(2)(b)'s open driver's window and PO Weinberg approaching the front passenger window. § 87(2)(b) spoke first and asked why he was pulled over. § 87(2)(b) was very irate and speaking in a loud volume. PO D'Amico requested § 87(2)(b)'s license, registration, and insurance and explained that § 87(2)(b) was being pulled over for idling and obstructed view. Because of § 87(2)(b)'s demeanor, PO D'Amico was "on edge," and taking additional precautions with his body stance and body language.

§ 87(2)(b) reached towards his glove compartment and retrieved his insurance card. When reaching for the glove compartment, § 87(2)(b) did not verbally indicate what he was reaching for and his demeanor suggested that it might be a gun. § 87(2)(b)'s insurance card was printed on a legal-sized piece of paper, which he held up to the driver-side window with his left hand, obstructing PO D'Amico's view into the car. As § 87(2)(b) held up this paper, he dipped his body down and reached beneath his seat without giving any verbal indication of what he was reaching for. PO D'Amico thought § 87(2)(b) could be reaching for a gun because of the area he was reaching and because of his irate demeanor. Due to these considerations, PO D'Amico unholstered his gun and pointed it straight in the direction of § 87(2)(b). PO D'Amico was about six feet away from § 87(2)(b) at this point, and his arms were not extended when pointing his gun. While pointing his gun, PO D'Amico instructed § 87(2)(b) to "give me your hands," and § 87(2)(b) complied. § 87(2)(b) asked, "Why the fuck did you do that? What did I do?" § 87(2)(b) did not retrieve anything from under the seat. PO D'Amico told § 87(2)(b) not to reach under the seat when asked for documentation.

Once § 87(2)(b) showed PO D'Amico his hands, PO D'Amico reholstered his gun. § 87(2)(b) then retrieved his license and registration from a compartment to the left of the steering wheel and handed them to PO D'Amico, who returned to the RMP with PO Weinberg. PO D'Amico did not remember what PO Weinberg had been doing throughout the incident.

PO D'Amico returned to § 87(2)(b)'s car and issued him two summonses for idling and obstructed view. § 87(2)(b) asked PO D'Amico for his name and shield number one time. PO D'Amico said his name was on the summons and provided his shield number. § 87(2)(b) had not asked for PO D'Amico's name or shield number at any point prior in the incident. PO D'Amico never concealed his shield with his shoulder or hand. PO D'Amico never used profanity during the incident and never said, "I'm fucking pulling you over."

Witness Officer: PO DAVID WEINBERG

- *PO Weinberg is a white man, who was § 87(2)(b) old at the time of the incident. He is 6' tall, weighs 170 pounds, and has brown hair and brown eyes.*
- *On November 2, 2013, PO Weinberg was uniformed, assigned to Sector Patrol in the 120th Precinct from 3:00 p.m. to 11:35 p.m., and partnered with PO D'Amico. He was assigned to RMP no. 3379.*

Memo Book

On the date and time of occurrence, PO Weinberg's memo book (encl. E-7-E-10) states verbatim, "19:13 – car stop at Alaska and Castleton, driver very irate and uncooperative. Pulled over for key in ignition for over three minutes. 19:25 – summons issued by partner."

CCRB Testimony.

PO Weinberg was interviewed at the CCRB on March 12, 2014. His testimony is summarized below (encl. E-6-E-11). § 87(2)(g)

On November 2, 2013, at approximately 7:13 p.m., PO Weinberg was the passenger in a marked RMP being driven by PO D'Amico. They observed § 87(2)(b)'s car double parked and idling for more than three minutes. In addition, there were items obstructing the windows of his car. The officers pulled § 87(2)(b) over in the vicinity of Alaska Street and Castleton Avenue.

PO D'Amico approached § 87(2)(b)'s driver-side window, and PO Weinberg approached the front passenger window. § 87(2)(b) was immediately irate and uncooperative, yelling, cursing, and asking why he was being pulled over. PO Weinberg could not hear specific details of PO D'Amico's conversation with § 87(2)(b) and he did not hear PO D'Amico ask § 87(2)(b) for his license and registration. § 87(2)(b) bent down and reached under his seat, and PO Weinberg heard PO D'Amico scream, "Let me see your hands." PO Weinberg could not remember if § 87(2)(b) reached with one or both hands. § 87(2)(b) was not immediately cooperative, though he eventually complied. PO Weinberg could not recall how many times PO D'Amico issued directives to § 87(2)(b) before he complied, but knew that it was several times. PO Weinberg did not know what § 87(2)(b) was reaching for, but knows that people normally do not keep their license and registration under their seat. PO Weinberg never saw PO D'Amico unholster or point his gun at § 87(2)(b) when he was screaming or at any point during the incident, and his attention was on § 87(2)(b). § 87(2)(b) was not allowed to retrieve anything from underneath his seat at that time. PO Weinberg did not recall § 87(2)(b) obstructing PO D'Amico's vision into his vehicle with a piece of paper or in any other way, as PO D'Amico had alleged that § 87(2)(b) did. PO Weinberg did not know which items § 87(2)(b) retrieved from any particular locations in his vehicle.

PO Weinberg and PO D'Amico returned to their RMP. Then both officers went back to § 87(2)(b)'s car where PO D'Amico issued § 87(2)(b) summonses. PO Weinberg never heard § 87(2)(b) ask PO D'Amico for his name or shield number at any point throughout the incident. PO Weinberg never heard PO D'Amico say he would not provide his name or shield number. PO Weinberg never saw PO D'Amico cover his shield with his shoulder or hand. PO Weinberg did not recall if PO D'Amico used profanity. PO Weinberg did not remember hearing PO D'Amico say, "What are you reaching for? I'm fucking pulling you over." PO D'Amico's demeanor was calm throughout the incident; § 87(2)(b) remained irate throughout the entire incident.

NYPD Documents

Event Information D13110219825

At 7:06 p.m. on November 2, 2013, officers were investigating a suspicious vehicle in the vicinity of Alaska Street and Castleton Avenue (encl. F-2). Sector I responded.

120th Precinct Roll Call

The 120th Precinct Tour 3 Roll Call from November 2, 2013 (encl. F-6-F-14) confirms that PO Justin D'Amico and PO David Weinberg were working as partners at the time of the incident.

Summons/Arrest for Incident and Disposition

- The dispositions for the two summonses issued to § 87(2)(b) during this incident could not be located in the Office for Court Administration database (encl. G-1-G-15). The investigator has attempted contacting the New York State Department of Motor Vehicles

clerk to learn the dispositions of those summonses. The investigator has not been able to reach a clerk in that office, but will add any information regarding the dispositions of § 87(2)(b)s summonses upon receipt.

Status of Civil Proceedings

- § 87(2)(b) had not filed a notice of claim with the New York City Comptroller's Office as of April 4, 2014, which is more than two months past the filing deadline (encl. I-2)

Civilian Criminal History

- § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED] (encl. G-14)

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. B-2)

Subject Officer CCRB History

- PO Justin D'Amico has been a member of the service for three years, and this is the first complaint filed against him (encl. B-1).

Conclusion

Identification of Subject Officer

PO Justin D'Amico acknowledged interacting with § 87(2)(b) during the incident.

Allegations Not Pleaded

A vehicle stop allegation was not pleaded because § 87(2)(b) admitted to violating sections of the New York State Vehicle and Traffic Law prior to being pulled over by the officers.

Investigative Findings and Recommendations

Allegation A – Force: PO Justin D'Amico pointed his gun at § 87(2)(b)

It is undisputed that PO D'Amico pointed his gun at § 87(2)(b) when § 87(2)(b) began reaching for his documentation. § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

“The policy of the Department is that an officer can draw his firearm and point it at another person so long as he has a reasonable fear for his own or another person's safety. This policy permits officers to discourage or terminate the attempted use of deadly force against themselves by providing them with a less drastic alternative to the actual use of a firearm,” Police Department v. Gliner, OATH Index No. 955/00 (2000) (encl. A-1-A-18)

§ 87(2)(g)

Allegation B – Discourtesy: PO Justin D’Amico spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that PO D’Amico used profanity when speaking to him; specifically he alleged that PO D’Amico said, “I’m fucking pulling you over.” § 87(2)(b) also admitted to using profanity, but only after PO D’Amico had done so. PO D’Amico alleged that § 87(2)(b) began using profanity once he pointed his gun at § 87(2)(b) while PO Weinberg stated that § 87(2)(b) began cursing as soon as the officers approached his vehicle. PO D’Amico denied using any profanity or saying, “I’m fucking pulling you over.” PO Weinberg did not hear PO D’Amico use any profanity throughout the incident. § 87(2)(g)

Allegation C– Abuse of Authority: PO Justin D’Amico refused to provide his name and shield number to § 87(2)(b)

It is undisputed that § 87(2)(b) asked PO D’Amico for his name and shield number at some point during the incident. It is undisputed that PO D’Amico told § 87(2)(b) that his identifying information could be found on the summonses. While PO D’Amico maintained that § 87(2)(b) only asked him for his name and shield number once, when being issued summonses, § 87(2)(b) stated that he asked PO D’Amico for his name and shield number four times. § 87(2)(b) testified that he began asking for PO D’Amico’s name and shield number after PO D’Amico pointed his gun at him, when he also told the officer he would be filing a complaint. At that time, § 87(2)(b) alleged that PO D’Amico did not verbally respond and covered his shield. § 87(2)(b)’s statement corroborates § 87(2)(b)’s as she heard § 87(2)(b) ask an officer for his name and shield number three times and did not hear the officer respond. § 87(2)(b) stated that PO D’Amico told him that identifying information was on the summonses. § 87(2)(b) also confirmed that she heard the officer tell § 87(2)(b) that his shield number was on the summons when he returned to § 87(2)(b)’s vehicle to issue the summonses. PO D’Amico’s account differs in that he maintained that the one time that § 87(2)(b) requested his name and shield number, he responded by verbally stating his shield number and saying that his name was on the summonses. Finally, on the summonses issued to § 87(2)(b) (encl. F-15-F-17), PO D’Amico’s name and signature are not legible.

NYPD Patrol Guide Procedure 203-09 (encl. A-19) requires that officers clearly state their rank, name, and shield number upon request or “otherwise provide them.”

§ 87(2)(g)

§ 87(2)(g)

Team: 3

Investigator:	_____	<u>Flannery Gallagher</u>	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date